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Titles Without Court Orders

Any of these types of services may be done through [Title and Registration](#) or [Title Only](#). The Ownership Reason in a Title service will need to be changed to match the type of documentation received.

Internal Revenue Service (IRS) Transfer of Ownership (Form 2435)

The Division is authorized to issue a title for a vehicle seized and subsequently sold by the United States Government. The IRS Form 2435 cancels all previously issued ownership documents (i.e., titles, MCOs, etc.).

► Documentation Required for an IRS Form 2435

Non-Probate

A Non-Probate is an affidavit available to an applicant for the purpose of making claim to a decedent's personal property and which will not require court paperwork. The affidavit contains a sworn oath and requirements that the successor (referred to as the AFFIANT on the form) must sign.

- When a Non-Probate can be Completed**
- Documentation Required for a Non-Probate**
- Customer Entitled to Plate and/or Registration Credit**
- Legal Status on a Non-Probate (One Owner is Still Living)**
- Lien Release with a Non-Probate Affidavit**

Repossession

Repossession occurs when a lienholder takes possession of a vehicle after the owner of the vehicle defaults on the terms of the security agreement.



When processing the repossession, the lien will need to be released.

However, if the lienholder has sold the vehicle to a new owner, there may be new lien to record.

Repossession is limited to a vehicle in which a lien has been “properly filed with the Division.” However, under certain circumstances, when an innocent third party is not involved, the Division will permit a lien

to be filed at the same time the application and documents for repossession are submitted. View the [Repossession When Lien Was Not Filed](#) section for more information.

For a lien that has been 'properly filed with the Division', the lienholder on record must submit a completed [Repossession Affidavit, form #48-0902](#) for a vehicle that is physically located in Arizona.



A vehicle that is not currently titled in Arizona must first be titled in the state where the lien was originally filed or where the vehicle is currently titled. There is an exception for Arizona licensed dealer, view the [Repossession for a Dealer](#) section for more information.



The Division can only set the requirements for the Arizona Repossession Affidavits. Therefore, the MVD cannot reject out-of-state repossession affidavits just because some fields required by Arizona are missing.

- ▶ **[Repossession for a Lienholder](#)**
- ▶ **[Repossession for a Dealer](#)**
- ▶ **[Repossession When Lien Was Not Filed](#)**
- ▶ **[Out-of-State \(OOS\) Repossessions](#)**

Owner Affidavit, Form #46-4421

A Scrap Metal Dealer or an Automotive Recycler may use [Owner Affidavit, form #46-4421](#) in place of a title when all the following applies:

- The owner does not have the title
- The vehicle is at least 12 years old or older
- The purchase price is not more than \$1,200
- The Scrap Metal Dealer or Automotive Recycler is putting the vehicle into their name

The vehicle will be branded as Non-Repairable and a title fee of \$4.00 is collected.

View Policies [8.6.2 Title Transfer](#) for more information on Owner Affidavits and the [Brand Management](#) topic > [Non-Repairable](#) section for more information on the Non-Repairable brand.



When processing an Owner Affidavit the CSR will select Bill of Sale for the Ownership Reason.

Sheriff's Sale

When a person is guilty of non-payment of personal property taxes, when the vehicle has been seized for narcotics violations, or a court-issued writ, the county sheriff's department has the authority to sell the vehicle.

- ▶ **[Documentation Required for a Sheriff's Sale](#)**

Standard Form 97

A vehicle that is seized for narcotics, customs, or taxes, becomes the property of the Federal Government. The United States (US) General Services Administration (GSA), issues the United States Government Certificate to Obtain Title to a Vehicle (Standard Form 97) to the purchaser. This form serves as an ownership document and cancels all previous titles and liens on the vehicle.

The United States Government can also use the Transfer Order Excess Personal Property (Form 122) to transfer motor vehicles only for motor vehicles between federal government agencies and cannot be used as an ownership document for issuance of a Certificate of Title.

The Arizona Department of Administration (ADOA) is authorized to accept and transfer federal government surplus property motor vehicles to other state agencies and political subdivisions. A Standard Form 97 assigned to the State of Arizona, together with a Title Transfer Certificate to the new owner, is acceptable documentation for transfer.

► Documentation Required for a Standard Form 97

► Example of Standard Form 97



Until we are fully paperless, when you finish the T & R service for the customer, you will print out the Title Summary (artifact), have the customer review and sign, and re-scan into MAX. This will replace the process where you print the T&R Application for the customer to sign.

Policies

8.7.2 United States (US) Government Vehicle Sale

8.7.3 Non-Probate (Estate)

8.7.4 Repossessions

8.8.8 Sheriff's Sale

Forms

Military Surplus Vehicle Highway Use Certificate, form #96-0371A

Non-Probate Affidavit, form #32-6901

Plate Release, form #48-3302

Repossession Affidavit, form #48-0902

Title and Registration Application, form #96-0236

Title Transfer (Bill of Sale), form #38-1306

Charts

Signature Requirements for T&R

HELPFUL LINKS

» [MVD / DMV Public Website](#) »

» [Customer Portal](#) »

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